Fort Bend County District Court

Cause No. 2024-CV-0016

Sharon Flores, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	4-2-24
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant, appearing subject to and without waiving its right to contest the sufficiency of Plaintiff's pleadings, files this Original Answer to Plaintiff's Original Petition and respectfully shows the Court as follows.

General Denial. Pursuant to Texas Rule of Civil Procedure 92, Defendant generally denies each and every material allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Constitution and laws of the State of Texas.

First Affirmative Defense: Proportionate Responsibility. Plaintiff's own negligence caused or contributed to the collision, including following too closely, failing to keep a proper lookout, and failing to timely apply the brakes. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributable to Plaintiff, and Plaintiff may not recover if that percentage exceeds fifty percent.

Second Affirmative Defense: Sole Proximate Cause. The collision and the injuries alleged were proximately caused by the acts or omissions of a person or persons other than Defendant, over whom Defendant had no control and for whom Defendant is not legally responsible.

Third Affirmative Defense: Failure to Mitigate Damages. Plaintiff failed to exercise reasonable care to mitigate the damages claimed, including by failing to follow reasonable medical advice and by delaying treatment, and any recovery must be reduced accordingly.

Defendant reserves the right to amend this Answer as discovery proceeds.